

25NWLC65913 25NWLC65913

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-07

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Case Number: 25NWLC65913 Hearing Date: August 7, 2026 Dept: Y

25NWLC65913: CAPITAL ONE, N.A. SUCCESSOR BY MERGER TO DISCOVER BANK vs MELCHOR ARIZMENDI

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Capital One, N.A., the supporting declaration, and all relevant court records.

In its motion, Plaintiff requests to vacate the Default Judgment entered by the Court on April 17, 2026 and dismiss the action without prejudice. Plaintiff has presented evidence that Defendant Melchor Arizmendi ("Defendant") has filed for bankruptcy.

Pursuant to Code of Civil Procedure section 473(d), the Court may set aside any void judgment or order. Code of Civil Procedure section 128 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Based on the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's Motion to Vacate Default Judgment. Accordingly, the Default Judgment entered against Defendant on April 17, 2026 is vacated.

The Court further orders that the Complaint filed by Plaintiff and against Defendant is DISMISSED without prejudice.

Plaintiff to give notice.